

IAS PRELIMS/MAINS

Ecology & Environment

A stylized illustration of a green city skyline with various skyscrapers, wind turbines, and a sun, set against a light green background with a globe-like shape.

A COMPREHENSIVE COVERAGE

MODULE - 58

INDIA'S LAWS AND POLICIES - 6

BIODIVERSITY ACT, 2002

CONCEPT OF BIO-PIRACY

- Bio-piracy refers to the appropriation of the knowledge and genetic resources of farmers and indigenous communities by individuals or institutions that seek exclusive monopoly control (patents) over these resources and knowledge.
- Biopiracy happens when researchers or research organizations take biological resources without official sanction, largely from less affluent countries or marginalized people.



Indian bio-resources such as the neem tree, tamarind, turmeric, and Darjeeling tea have all been patented by foreign firms for different lucrative purposes.

BIO-PROSPECTING

- The term 'Bio-prospecting' is more commonly used by research groups who attempt to search for biological resources in a legal and respectful manner. Sadly, not many positive examples of bio-prospecting exist.
- It involves ethical considerations such as
 - ✓ prior informed consent,
 - ✓ access and benefit sharing agreements, and
 - ✓ material transfer agreements before research commences.
- Earnings from any commercial products should go towards local conservation efforts and the construction of infrastructure.



SCIENTIFIC COLONIALISM

- Although biopiracy might happen within a country, with elite groups or government officials taking resources from less influential citizens, it more frequently occurs between different countries.
- Biopiracy often increases power inequalities between wealthy, technology-rich countries and less affluent, yet bio-resource-rich countries.
- Since the early 2000s, many national governments have changed their laws to protect their bio-resources, in accordance with the 1992 Convention on Biological Diversity.



BIODIVERSITY ACT, 2002

- The United Nations Convention on Biological Diversity for the first time made a comprehensive plan for the protection of biodiversity.
- Post 1990s, there was a change in the economic structure from closed economy to open economy. Thus, there were no laws to protect against bio-piracy by the developed nations on the Indian soil.
- Hence, a strong legislation was required to curtail the overexploitation and piracy of the indigenous resources.



Convention on
Biological Diversity



BIODIVERSITY ACT, 2002

- The objectives of the Act are
 - ✓ Conservation of Biological diversity
 - ✓ Sustainable use of its components
 - ✓ Fair and equitable sharing of the benefits arising out of utilization of genetic resources.
- Apart from these main objectives the Act has also given force to some of the terms of CBD by the following provisions:
 - ✓ To respect and protect knowledge of local communities' traditional knowledge related to biodiversity.
 - ✓ To conserve and develop areas of importance from the standpoint of biological diversity by declaring them biological diversity heritage sites.

- The Biological Diversity Act of 2002 and the Biological Diversity Rules, 2004 are implemented by National Biodiversity Authority (NBA) at the national level, State Biological Board (SBB) at state level and Biodiversity Management Committees (BMC's) at local levels.



THE FUNCTIONS OF THESE AUTHORITIES

- To regulate activities, approve and advice the Government of India on matters relating to the conservation of biodiversity, sustainable use of its components and equitable sharing of benefits.. A foreigner or a foreign company needs to take permission from the NBA before obtaining any biological resources or associated knowledge from India for research, survey, commercial utilization.
- Indian citizens or companies need to take permission from the concerned State Biodiversity Board.
- Result of research using biological resources from India cannot be transferred to a non-citizen or a foreign company without the permission of NBA. However, no such permission is needed for publication of the research in a journal or seminar, or in case of a collaborative research made by institutions approved by Central Government.
- No person should apply for patent or other form of intellectual property protection based on the research arising out of biological resources without the permission of the NBA. The NBA while granting such permission may make an order for benefit sharing or royalty based on utilization of such protection.



THE FUNCTIONS OF THESE AUTHORITIES

- There is no overlap in the functions of **NBA** and **SBBs** on issues of **ABS**. Their **domains and functions are very distinct from each other**.
- All matters relating to requests by foreign individuals, companies or institutions and all matters relating to transfer of results of research to any foreigner, approvals for intellectual property protection where biological resources and associated knowledge are involved will be dealt with by **NBA**.
- All matters relating to access by Indians for commercial purposes will be under the purview of the concerned **State Biodiversity Boards**. However, the benefit sharing guidelines are to be issued by the **NBA**.



THE FUNCTIONS OF THESE AUTHORITIES

- NBA notifies areas of biodiversity importance as biodiversity heritage sites under this act.
- The NBA deals with the requests for access to the biological resources as well as transfer of information of traditional knowledge to foreign nationals, institutions and companies. Through this way piracy of Intellectual Property Rights in and around India is prevented, it also saves the indigenous people from exploitation.
- The Biological Diversity Act of 2002 and the Biological Diversity Rules, 2004 are implemented by National Biodiversity Authority (NBA) at the national level, State Biological Board (SBB) at state level and Biodiversity Management Committees (BMC's) at local levels.



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ROLE OF LOCAL COMMUNITIES

- An analysis of the provisions reveals that local concerned communities do not have any real power in the decision-making process. Regulation of access is done by NBA and SBB and not the local communities.
- The NBA may consult the communities to work out benefit sharing mechanisms after the decision to allow access is made. The communities have no say in deciding whether or not the access should be allowed in the first place.
- They are not well informed as to their rights and have very less knowledge of the system of IPRs or commercial use of the traditional knowledge, and this highly centralized approach is not be of great benefit.



2 PRIOR INFORMED CONSENT

- Prior informed consent is defined as a process by which owner or holder of knowledge or resources must agree to the collection or use of these before an activity takes place. The applicant who wants access must provide all pertinent information so that the community may make an informed decision.
- Indigenous peoples' right to free, prior and informed consent (FPIC) has been recognized by a number of intergovernmental organizations, international bodies, conventions and international human rights law.

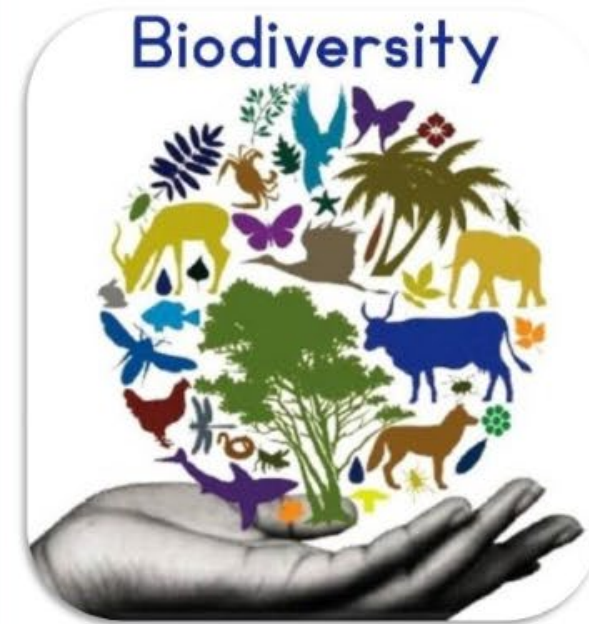


ONE OF THE OBJECTIVES OF CBD

“To respect, preserve and maintain knowledge, innovations and practices of indigenous and local communities and promote their wider application with the approval and involvement of the holders of such knowledge, innovation and practices”.

PRIOR INFORMED CONSENT IN THE BIODIVERSITY ACT

- There are number of issues relating to the provision of ‘consultation’ with local communities. Firstly, the term consultation does not mean consent and is therefore much weaker than the requirement of “consent of local body”. The term is often ambiguously used to mean only talking to a few villagers, or to a head of a village. Also making people fully aware of the pros and cons of their granting consent is an important precondition for their truly exercising the option to say “yes” or “no”.
- Unfortunately, the Act and Central Rules leave the interpretation of the word wide open and therefore do not facilitate complete participation of local communities.



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